AS TO THE ADMISSIBILITY OF

Application No. 25490/94
by Gustaf JOHANSSON
against Sweden

The European Commission of Human Rights (Second Chamber) sitting in private on 17 January 1996, the following members being present:

Mrs. G.H. THUNE, Acting President
MM. H. DANELIUS
G. JÖRUNDSSON
J.-C. SOYER
H.G. SCHERMERS
F. MARTINEZ
L. LOUCAIDES
J.-C. GEUS
M.A. NOWICKI
I. CABRAL BARRETO
J. MUCHA
D. SVÁBY
P. LORENZEN

Ms. M.-T. SCHOEPFER, Secretary to the Chamber

Having regard to Article 25 of the Convention for the Protection of Human Rights and Fundamental Freedoms;

Having regard to the application introduced on 6 May 1994 by Gustaf Johansson against Sweden and registered on 26 October 1994 under file No. 25490/94;

Having regard to the report provided for in Rule 47 of the Rules of Procedure of the Commission;

Having deliberated;

Decides as follows:

THE FACTS

The applicant, a psychologist born in 1946 and residing at Skultuna, is a Swedish citizen.

The facts of the case, as submitted by the applicant, may be summarised as follows.

The applicant is the owner of a piece of property, Skälby 2:5, in the municipality of Västerås. It is part of a joint hunting area (jaktvårdsområde), which was formed in 1987 by a decision of the County Administrative Board (Länsstyrelsen) of the County of Västerbotten in accordance with the Act on Joint Hunting Areas (Lagen om jaktvårds-områden, 1980:894). Section 1 of that Act provides that such areas may be established for the purpose of promoting the preservation of game and the hunting rights holders' common interests. In accordance with that Section, the holders of the hunting rights within the area formed a hunting association (jaktvårdsområdesförening) to administer the hunting. Its statutes were approved by the County Administrative Board. Under Section 3 of the above Act, the owner of a property belonging to a joint hunting area is a member of the hunting association. The applicant could hunt within the joint area, including his own property, but was obliged to co-ordinate the hunting with the other hunting rights holders.

In 1992, the applicant requested that his property be registered

as a separate elk-hunting area under Section 33 of the Hunting Act (Jaktlagen, 1987:259).

After having consulted the above association, which did not accept that the applicant's property be excluded from the joint hunting area, the County Administrative Board, by decision of 10 March 1993, found that the applicant's property, being part of the joint area, could not be registered as a separate elk-hunting area. It thus rejected the applicant's request. On 7 May 1993 the decision was upheld by the Administrative Court of Appeal (Kammarrätten) of Stockholm. On 14 March 1994 the Supreme Administrative Court (Regeringsrätten) refused leave to appeal.

COMPLAINTS

1. The applicant claims that the decision not to register his property as a separate elk-hunting area violated his rights to freedom of peaceful assembly and freedom of association under Article 11 of the Convention.

2. The applicant further contends that the decision violated his right to the peaceful enjoyment of his possessions as guaranteed by Article 1 of Protocol No. 1 to the Convention.

THE LAW

1. The applicant complains of a violation of Article 11 (Art. 11) of the Convention, which reads as follows:

> "1. Everyone has the right to freedom of peaceful assembly and to freedom of association with others, including the right to form and to join trade unions for the protection of his interests.
>
> 2. No restrictions shall be placed on the exercise of these rights other than such as are prescribed by law and are necessary in a democratic society in the interests of national security or public safety, for the prevention of disorder or crime, for the protection of health or morals or for the protection of the rights and freedoms of others. This Article shall not prevent the imposition of lawful restrictions on the exercise of these rights by members of the armed forces, of the police or of the administration of the State."

The Commission notes that the decisions complained of concerned the applicant's request to have his property registered as a separate elk-hunting area. It did not address or affect the applicant's membership of the hunting association. In any case, the Commission finds that the association has been established under the relevant legislation in the public interest for the administration of hunting and preservation of game and that it is comparable to a public institution which cannot be considered as an association within the meaning of Article 11 (Art. 11) of the Convention.

It follows that this part of the application is incompatible ratione materiae with the provisions of the Convention within the meaning of Article 27 para. 2 (Art. 27-2) of the Convention.

2. The applicant further complains of a violation of Article 1 of Protocol No. 1 (P1-1) to the Convention, which provides the following:

> "Every natural or legal person is entitled to the peaceful enjoyment of his possessions. No one shall be deprived of his possessions except in the public interest and subject to the conditions provided for by law and by the general principles of international law.

The preceding provisions shall not, however, in any way impair the right of a State to enforce such laws as it deems necessary to control the use of property in accordance with the general interest or to secure the payment of taxes or other contributions or penalties."

The Commission first notes that the applicant has not been deprived of his possessions. The Commission, however, finds that the decisions complained of constituted a measure of controlling the use of his property falling under the second paragraph of the above provision. Such a measure is permissible in the general interest if there exists a reasonable relationship of proportionality between the means employed and the aim pursued. In striking a fair balance between the general interest of the community and the requirement of protection of the individual's fundamental rights, the authorities enjoy a wide margin of appreciation (cf. Eur. Court H.R., Allan Jacobsson judgment of 25 October 1989, Series A no. 163, p. 17, para. 55).

In the present case, the creation of the joint hunting area was aimed at promoting game preservation and the hunting rights holders' common interests. The Commission notes that the applicant could hunt within that area, including his own property, but was obliged to co-ordinate the hunting with the other hunting rights holders. There is nothing to indicate that he would not have hunting rights in relation to his property's share of the joint area.

Having regard to the above and to the wide margin of appreciation enjoyed by the Contracting States, the Commission cannot find that the decision to refuse registration of the applicant's property as a separate elk-hunting area was disproportionate to the aimed pursued.

It follows that this part of the application is manifestly ill-founded within the meaning of Article 27 para. 2 (Art. 27-2) of the Convention.

For these reasons, the Commission unanimously

DECLARES THE APPLICATION INADMISSIBLE.

Secretary to the Second Chamber	Acting President of the Second Chamber
(M.-T. SCHOEPFER)	(G.H. THUNE)